

July 25, 2012



U.S. Department
of Transportation

East Building, PHH-30
1200 New Jersey Avenue S.E.
Washington, D.C. 20590

**Pipeline and Hazardous
Materials Safety Administration**

DOT-SP 15617

EXPIRATION DATE: December 31, 2012

1. GRANTEE: Veolia ES Technical Solutions, L.L.C.
Flanders, NJ
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the one-way, one-time transportation in commerce of alternate packaging for waste phosgene in glass breakseal bulbs. This special permit waives the segregation requirements for the transportation of this Division 2.3 material to a disposal facility. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein.
 - b. The safety analyses performed in the development of this special permit only considered the hazards and risks associated with the transportation in commerce.
 - c. No party status will be granted to this special permit.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.192, §177.848
5. BASIS: This special permit is based on the application of Veolia ES Technical Solutions, L.L.C. dated March 12, 2012 submitted in accordance with § 107.105 and the public proceeding thereon.

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6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Phosgene	2.3	UN1076	N/A

7. SAFETY CONTROL MEASURES:a. PACKAGING -

- i. Inner packaging - The hazardous material is contained in a glass breakseal bulb, approximately seven inches in length, containing no greater than 88.3 mg of the material per bulb. No more than one bulb may be contained in each completed package.
- ii. Intermediate packaging - The bulbs must be placed inside a plastic ziptop bag and secured with a label identifying the contents. The sealed bag is then sealed inside a plastic cylindrical container, secured with foam stability inserts top and bottom. The cylindrical container is then placed into a plastic ziptop bag which is placed in a 5 gallon UN 1A2 removable-head steel drum certified at the PG I performance level with cushioning materials completely surrounding the plastic container.
- iii. Outer packaging - The UN 1A2 steel drum is placed into a plastic liner, which is taped closed, then placed into a 14 gallon UN 1G fiber drum certified at the PG I performance level with all void spaces filled with cushioning materials.

b. OPERATIONAL CONTROLS

- i. The operation is to be a two part shipment. The first part is to be performed by Veolia and the second under contract by E R Squibb & Sons.
- ii. Each package must be adequately secured, blocked, and braced to ensure to movement or shifting may occur during transportation.

iii. The segregation requirements of §177.848 are waived.

iv. This special permit authorizes the one-way, one-time transportation of packages from the E R Squibb & Sons laboratory to a disposal facility. This special permit is valid for six months after the date of issue.

8. SPECIAL PROVISIONS:

a. A person who is not a holder of this special permit who receives a package covered by this special permit may reoffer it for transportation provided no modification or change is made to the package or its contents and it is reoffered for transportation in conformance with this special permit and the HMR.

b. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor Vehicle.

10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard motor vehicle used to transport packages covered by this special permit.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive

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training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)–“The Hazardous Materials Safety and Security Reauthorization Act of 2005” (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term “exemption” to “special permit” and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for Dr. Magdy El-Sibaie
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-30, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

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Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: